

C.M.A.No.1333 of 2020

IN THE HIGH COURT OF JUDICATURE AT MADRAS

JUDGMENT RESERVED ON	JUDGMENT PRONOUNCED ON
11.08.2022	25.08.2022

CORAM:

THE HONOURABLE **MS.JUSTICE V.M.VELUMANI**
and
THE HONOURABLE **MR.JUSTICE S.SOUNTHAR**

C.M.A.No.1333 of 2020
and C.M.P.No.9678 of 2020

Poongkodi

... Appellant

Vs.

Ashok alias G.Ashokan

... Respondent

Prayer: This Civil Miscellaneous Appeal is filed under Section 19 of the Family Courts Act, 1984, against the order and decree dated 27.07.2020 made in F.C.O.P.No.166 of 2015 on the file of the Family Court, Salem.

For Appellant : Mr.K.Selvaraj

For Respondent : Mr.S.Vadivel Murugan

J U D G M E N T

[Judgment of the Court was delivered by V.M.VELUMANI,J.]

This Civil Miscellaneous Appeal has been filed against the order and



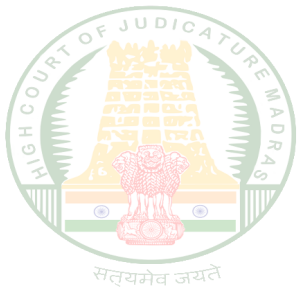
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decree dated 27.07.2020 made in F.C.O.P.No.166 of 2015 on the file of the
Family Court, Salem.

2.The respondent is husband and appellant is wife. The respondent filed F.C.O.P.No.166 of 2015 on the file of the Family Court, Salem, for the relief of divorce by dissolving the marriage conducted on 30.01.2012 between the respondent and appellant on the ground of cruelty under Section 13 (1)(i-a) of the Hindu Marriage Act, 1955 (hereinafter referred to as, 'the Act').

Case of the respondent-

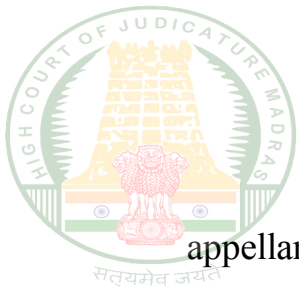
3(a).The respondent and appellant got married on 30.01.2012. On the first night, the appellant did not allow the respondent to cohabit and threatened the respondent that if he attempts, she will give complaint of rape against the respondent and his family members. On coming to know the failure of first night, the parents of the respondent, at the interest of the respondent, arranged for medical examination and in the medical examination, it was found that there was no defect to lead their matrimonial life.



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WEB COPY 3(b).Due to some undesirable event that took place prior to the marriage,

the appellant attempted suicide and she was saved by medical treatment. She has married the respondent without her consent due to compulsion of her parents. Slowly the respondent made the appellant to forget her past and to lead a marital life. After that, the appellant lived with the respondent only for about 2 or 3 months. During that time, she did not discharge her duties as wife in the matrimonial home. The appellant never took any interest to do domestic work in the matrimonial home, she used to get up from the bed only at 8.00 a.m, her attitude was a great agony and torture to the respondent. The family members of the respondent took a lenient attitude and did not insist the appellant for doing household work. The appellant insisted the respondent to bring money from the family business without knowledge of others. But the respondent, with permission of his father and brothers, brought money from the family business, but appellant did not allow the respondent to spend that amount for their outing. The appellant insisted the respondent to come out from joint family and their business and set up own business or to work in her father's business. This was not accepted by the respondent and hence, the



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appellant treated the respondent cruelly and tortured him. Due to this unreasonable demand, the respondent suffered mental cruelty. The appellant used to go to her parent's house. Only after mediation and after imposing several conditions by the appellant and her parents, the appellant used to come to the matrimonial home. In the meantime, the appellant conceived. As per customs, the respondent and his family members arranged for a Valaikappu function in a Kalyana Mandapam and a female child by name Dhanishka was born on 14.09.2013 at Vijaya Hospital. The respondent and his parents often attended the appellant at the Hospital as well as at the house of her parents. When they visited at the Hospital, the appellant and her parents insulted the respondent and his family members. Subsequently, only after mediation, the appellant came to matrimonial home on 03.03.2014. Again, she insisted a separate establishment. She never allowed the family members of the respondent even to touch the child. Within a short time, inspite of great effort taken by the respondent, on 13.03.2014, the appellant left the matrimonial home again.

3(c).In order to have a cordial matrimonial life, the respondent took a

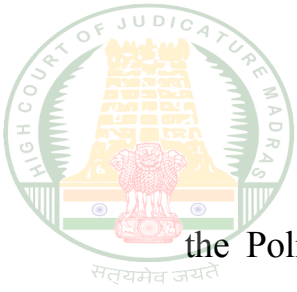


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separate rented house at Door No.97/2, Angalamman Koil Street, Manianoor.

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Even in the separate house, the appellant tortured the respondent mentally and physically, insisting the respondent to leave the joint family business and imposed a condition that others should work under the leadership of the respondent and also insisted the respondent to work in her father's business. While so, on 11.10.2014, when the respondent was at his work place, to threaten him, the appellant took some kind of tablets given for fever and headache. The same was intimated to the respondent over phone. After intimation to her father, she was admitted in Dharun Hospital. Even though the Medical Officer informed that there is nothing wrong with the appellant, except taking some wrong tablets, the appellant's father insisted to admit the appellant as in-patient for 3 days. On 14.10.2014, after her discharge, she went to her parent's house. The appellant's father, as an after thought, gave complaint in the 1st week of November, 2014, before the local Police. The Police, after detailed enquiry, advised the appellant to go and lead matrimonial life with the respondent in the absence of her family. Again, on 17.11.2014, the appellant and her father gave complaint to the Commissioner of Police, Salem. It was forwarded to the All Women Police Station, Salem, for enquiry. During enquiry,



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the Police advised the appellant to lead a marital life, but subsequently, on 24.11.2014, the appellant and her father, with the support of the Police, received all her jewels and other articles. After receiving the jewels, the appellant pressurized the Police to arrest the respondent and his family members. The respondent's family members were enlarged on bail in C.M.P.No.157 of 2014 on the file of the District Sessions Court, Salem and the respondent was released on bail by this Court in CrI.O.P.No.1499 of 2014.

3(d).Again, the appellant gave a false complaint alleging that the respondent is having illicit relationship with his elder brother's wife viz., Eswari and also for dowry harassment. The respondent and his family members obtained anticipatory bail. The attitude of the appellant is only to arrest the respondent and separate him from his family and get partitioned the property. In view of the best efforts taken by the respondent and the fact that the appellant refused to join him in the matrimonial life, the marriage between the appellant and respondent is irretrievably broken. The appellant gave a complaint and after registration of FIR, the said news was published in the newspaper, making defamatory allegation against the respondent and his family



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members. Due to the above acts of mental cruelty caused by the appellant to the respondent, the respondent filed F.C.O.P.No.166 of 2015, seeking a decree of divorce by dissolving the marriage and issued notice through his Advocate on 10.02.2015. The appellant sent a reply on 17.02.2015, containing false allegations. The respondent also sent a rejoinder dated 16.03.2015.

Case of the appellant-

4.The appellant filed counter statement and denied all the allegations made by the respondent. She denied that she did not cohabit in the marital life as alleged by the respondent. She denied the allegation of suicide before the marriage. The entire family business is controlled by the respondent's brothers and brothers' wife. After marriage, the appellant and her husband were living only as paid servants. The respondent, his father and brothers are looking after the business of Manufacturing silver chains and respondent's elder brother is looking after Sales as per the orders from North India. His elder brother used to go for 10 days out of station with regard to business. The respondent was dancing to the tune of his elder brother's wife and he does not have any guts to



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come out from the joint family. The respondent is having illicit relationship with his elder brother's wife and as per the advise of elders and family members, the appellant set up a separate house. Even then, taking advantage of absence of his elder brother, the respondent continued his illicit relationship with his sister-in-law. On the auspicious day of Valaikappu, the sister-in-law of the respondent behaved in a rude manner. Only the respondent and his sister-in-law were demanding dowry from the appellant's family. The appellant was driven out from the matrimonial home and her father took her to his house. Being dejected, she took some tablets and got admitted in the Hospital. Only for the sake of reunion, the appellant's father sought for the help of Police. The appellant also denied that she has taken all her jewels. She further submitted that from January, 2015 onwards, the respondent was pestering the appellant for a consent divorce. Hence, she sought Police help. The respondent issued notice with false allegation and the same was suitably replied. The allegations are invented for the purpose of filing vexatious petition for divorce and prayed for dismissal of O.P.

5.The learned Judge considering the pleadings, framed the following



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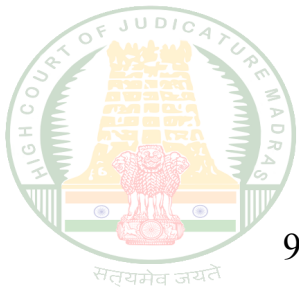
point for consideration:

WEB COPY *“Whether the petitioner is entitled for dissolution of marriage under Section 13(1)(i-a) of the Hindu Marriage Act.”*

6.Before the Family Court, the respondent examined himself as P.W.1, examined one R.Vijayakumar as P.W.2 and marked 27 documents as Exs.P1 to P27. The appellant examined herself as R.W.1 and marked 3 documents as Exs.R1 to R3.

7.Considering the pleadings, oral and documentary evidence let in by the parties, by the order dated 27.07.2020, the learned Judge allowed the F.C.O.P. and dissolved the marriage conducted between the appellant and respondent on 30.01.2012.

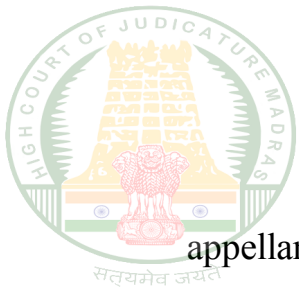
8.Against the said order dated 27.07.2020 made in F.C.O.P.No.166 of 2015, the appellant has come out with the present appeal.



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9(i).The learned counsel appearing for the appellant contended that the appellant has not caused any mental cruelty to the respondent. The learned Judge erred in granting divorce under Section 13(1)(i-a) of the Act. The entire problem between the appellant and the respondent is due to extra marital relationship, the respondent is having with his elder brother's wife. The same is admitted at the All Women Police Station as evidenced from Ex.P23-copy of complaint given by the appellant. The reason given by the learned Judge that statement given before the Police is not acceptable is erroneous. On the other hand, the learned Judge relied on Ex.P27, copy of judgment in Criminal Case in C.C.No.44 of 2015 dated 05.09.2018, to arrive at a conclusion that false criminal case filed by the appellant amounts to cruelty. The judgment in the Criminal case is not a finding in the civil case. The respondent did not examine his father, mother or his brothers to prove that the appellant has given false complaint against him. On the other hand, the respondent examined P.W.2, who is known to him through his business. The evidence of P.W.2 is artificial and is unbelievable.

9(ii).He further submitted that the finding of the learned Judge that

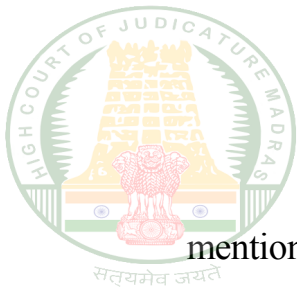


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appellant is not having real intention to live with the respondent is without any basis and is contrary to the finding of the learned Judge. The appellant gave a complaint in November, 2014 for reunion and respondent agreed to live with the appellant. In the reply notice, the appellant has expressed her intention to live with the respondent in a separate residence, not only to save the marriage, but also for the future of female child. In order to save the future of the female child, the appellant could not make any allegation of demand of dowry. The learned Judge has held that the appellant insisted on separate residence and committed cruelty, without considering the fact that the respondent is not living with his father and mother in the ground floor, but only living with his elder brother in the first floor of the building. The learned Judge ought to have seen that no wife will make allegation against her husband having illicit marital relationship with his elder brother's wife, unless the same is proved.

9(iii).The respondent failed to examine his relatives to disprove the case of the appellant. In view of the same, the finding of the learned Judge that appellant did not prove the illicit relationship of the respondent is contrary to law. The respondent made various allegations against the appellant as



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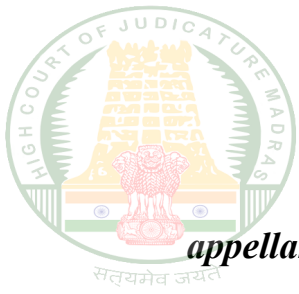
mentioned in para 7 of the order, but failed to prove the same. The reason given by the learned Judge is not in consonance with Section 13 (1)(i-a) of the Act and prayed for setting aside the order of the learned Judge and allowing the appeal.

10.The learned counsel appearing for the respondent reiterated the averments made in the petition and elaborately referred to the evidence of parties and documents filed and submitted that learned Judge has given reasons for accepting the case of the respondent and allowing the F.C.O.P. There is no reason to set aside the said order and prayed for dismissal of the appeal.

11.Heard the learned counsel appearing for the appellant as well as the respondent and perused the entire materials available on record.

Point for consideration:

Whether the respondent has proved mental cruelty meted out by the



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appellant as alleged in the petition.

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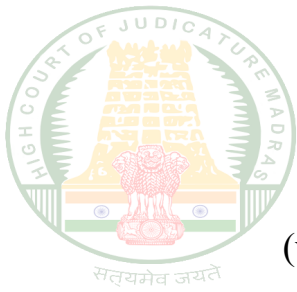
12.The respondent/husband has filed F.C.O.P. for a decree of divorce, dissolving the marriage conducted between the respondent and appellant on 30.01.2012. The respondent has sought the said relief under Section 13(1)(i-a) of the Act on the ground of cruelty. The respondent has made various instances of mental cruelty against the appellant. The main grounds on which the respondent is seeking divorce are as follows:

(i) The appellant refused to have sexual life from the date of marriage and only after medical counseling, she had marital life with the respondent.

(ii) The appellant failed to perform any of the duties as a wife when she was living with the respondent in the joint family.

(iii) The appellant was insisting on establishing a separate residence and insisted the respondent to bring money from joint family business, without knowledge of his father and brothers.

(iv) Even after establishing a separate residence, the appellant treated the respondent cruelly demanding luxurious life.



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(v) The appellant also insisted on having separate business from the joint family business of father and brothers.

(vi) The appellant made false allegation that respondent is having illicit relationship with respondent's elder brother's wife.

(vii) After birth of child, only after much persuasion, the appellant came to matrimonial home with child on 03.03.2014. But within 10 days, on 13.03.2014, she left the matrimonial home.

(viii) During that short period of stay, the appellant did not allow the family members of the respondent to touch the child.

(ix) When the respondent and appellant were living in the separate house, in order to threaten the respondent and his family members, the appellant took some tablets given for fever and headache and pretended that she tried to commit suicide.

(x) The appellant gave several false complaints against the respondent and the family members, especially as though they demanded dowry.

(xi) After giving false complaint of dowry harassment, she gave a news to the newspaper as though the respondent and his family members are absconding, which damaged the image of the respondent and his family



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members in the society and in their business circle.

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(xii) The appellant and her father, using political influence, tried to arrest the respondent and his family members and the respondent and his family members obtained bail. The criminal case initiated based on the false complaint of dowry harassment ended in acquittal of respondent and his family members after full fledged trial.

13.The appellant denied all the above allegations. According to the appellant, the problem between the respondent and appellant is due to illicit relationship, the respondent is having with his elder brother's wife and his admission regarding the same before the Police in the All Women Police Station. The appellant gave complaint only with a view to reunion with the respondent. The appellant gave complaint of dowry harassment only when the respondent and his family members demanded dowry. She further stated that she took tablets due to dejection in life.

14.From the above materials, it is seen that the respondent has sought for decree of divorce on the ground of cruelty caused by the appellant. As per



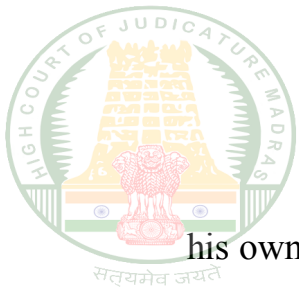
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Section 13(1)(i-a) of the Act, any one of the spouse can seek dissolution of

marriage on the ground of cruelty. Cruelty is not defined in the Hindu Marriage Act. But the concept of cruelty has been considered and decided in various judgments of this Court, other High Courts and Hon'ble Apex Court._The Courts have held that cruelty may be physically or mentally. Physical cruelty can be proved by letting in oral and documentary evidence. As far as mental cruelty is concerned, the same has to be decided based on the facts and circumstances of each case taking into consideration the social standing of the parties. In the present case, the respondent has enumerated various acts of mental cruelty committed by the appellant. The main grounds based on which the respondent is seeking dissolution of marriage are that:

(i) Within a short period of marriage, the appellant insisted on the respondent establishing a separate matrimonial home after being separated from joint family.

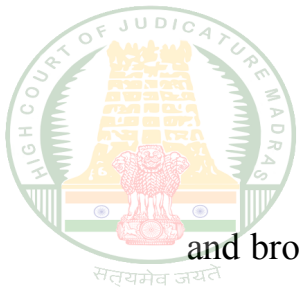
(ii) According to the appellant, the respondent is having illicit relationship with his elder brother's wife and respondent and appellant were treated as paid servants. The respondent is a worker in the business run by his father. The respondent has also stated that appellant insisted on the respondent establishing



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his own business after coming out of joint family business run by his father and brothers. The respondent, as P.W.1, deposed to that effect. The appellant, in her evidence, has repeated the allegation of illicit relationship of respondent with his sister-in-law. The appellant having made such a serious allegation, failed to prove the same by any acceptable evidence, except relying on alleged statement of respondent before the Police on the complaint given by her. The respondent, in his cross-examination, denied all the suggestions put to him in this regard. Further, in the rejoinder - Ex.P7, sent by counsel for respondent, the respondent has specifically stated that at the instigation of the appellant and her family members, the Police obtained signature of the respondent in a blank paper and also signatures in separate papers jointly with family members of respondent. The appellant and her father has lodged several complaints against the respondent and his family members, not only in the All Womens Police Station, but also before the Commissioner of Police, Salem. This shows that appellant and her father insisted the Police to take action against the respondent and his family members.

(iii) One more incident to be taken note of is that the appellant gave a complaint of dowry harassment against the respondent, his parents, brothers



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and brothers' wife. After the said complaint, a news item appeared in the daily paper that respondent and his family members demanded dowry and when the complaint is lodged, they are absconding. The appellant denied the suggestion that she was responsible for the said news item. Based on the complaint given as dowry harassment, a criminal case was initiated against the respondent, his father, mother, brothers and brothers' wife. After full fledged trial, the learned Judge acquitted the respondent and other family members, holding that prosecution failed to prove the charges beyond reasonable doubt. The appellant, in her cross-examination, has stated that she filed appeal against the acquittal of respondent and others. The appellant failed to furnish any details of appeal alleged to have been filed by her. In the absence of any proof of filing appeal, the judgment of the learned Judicial Magistrate has become final.

15.It is well settled that when one of the spouse has given a false complaint against another spouse, the same amounts to causing mental cruelty. In the present case, the appellant has given a complaint of demand of dowry not only against the respondent, but also against all the members of the respondent's family, which she failed to prove beyond reasonable doubt and all



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of them were acquitted. The complaints given by the appellant are proved to be false, which amounts to mental cruelty caused to the respondent and his family members. Due to the false complaint, the respondent and his family members were forced to obtain anticipatory bail and face criminal trial. According to the respondent, the news item has damaged the image of the respondent and his family members who are respectable persons in the society as well as in the business circle. In addition to the above, when the respondent and appellant were living in a separate house, the appellant attempted to commit suicide. When the appellant threatens to commit suicide or attempts to commit suicide, the same amounts to mental cruelty and respondent cannot be expected to live with the appellant when appellant, due to her conduct, caused anguish, disappointment and frustration.

16.Pestering the respondent to come out of the family business and start a business of his own, amounts to causing mental cruelty when the appellant was aware at the time of marriage that respondent is living in a joint family and carrying on business jointly along with his father and brothers. Having accepted such a situation, subsequently insisting on separate matrimonial home

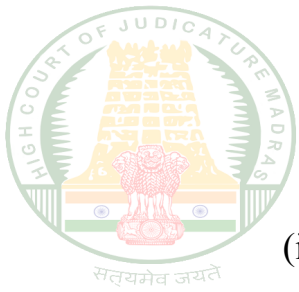


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and separate business will cause anguish, frustration and mental agony to the respondent.

17.The appellant, after leaving the matrimonial home, did not take any steps for reunion. On the other hand, she and her father have lodged various complaints against the respondent and his family members. In the counter statement, the appellant has not specifically stated that she is willing to join the respondent to lead a marital life in the matrimonial home. A reading of the counter statement shows that appellant has stated that out of necessity for the welfare of minor child, she has to live with the appellant. This will not amount to willingness to live with the respondent to lead a cordial marital life.

18.When a false complaint is given by the wife against her husband, whether it will amount to cruelty was considered by the two Division Bench judgments of this Court reported in **2019 (3) CTC 890 [Meenakshi Vs. Premkumar Nachiappan]** and **2021 (1) CTC 129 [Vivek Thambuswamy Vs. Maria @ Sijo Paul]** wherein it has been held that it will amount to mental cruelty. The relevant portions are extracted as under:

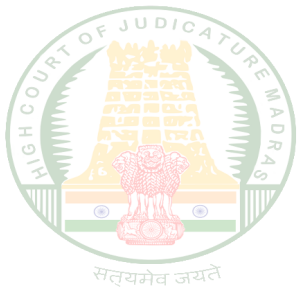


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(i)2019 (3) CTC 890 [Meenakshi Vs. Premkumar Nachiappan],

wherein the Division Bench of this Court at paragraph No.35 has held as follows:

“ 35. In this case, the appellant has filed C.C. No. 51 of 2012 on the file of Judicial Magistrate No.1, Sivagangai invoking the provisions contained under [Section 12](#) of The Protection of Women from [Domestic Violence Act](#). In C.C. No. 51 of 2012 an order dated 14.08.2015 was passed directing the respondent herein to pay to the appellant a sum of Rs.3,000/- per month as maintenance and also to make arrangements for the appellant to stay at Madurai. Challenging the same, Crl.OP No. 14541 of 2012 and 12116 of 2012 were filed before this Court. By an order dated 07.07.2015, this Court allowed Crl.OP No. 12116 of 2012 and quashed the proceedings in C.C. No. 51 of 2012. However, by the same order, this Court remanded the matter in so far as it relates to Crl.MP No. 5213 of 2012, which is the subject matter in Crl.OP No. 15451 of 2012, and to dispose of the same within four months. It is now brought to the notice of this Court that Crl.MP No. 5213 of 2012 filed by the appellant was dismissed for non-prosecution on 22.12.2016. In any event, launching criminal prosecution against the respondent, his parents and relatives of the respondent after the Family Court dissolved the marriage solemnised between the appellant and the respondent can be taken note of by this Court to conclude that the appellant intended to harass and humiliate not only the respondent but also his family members. Thus, the



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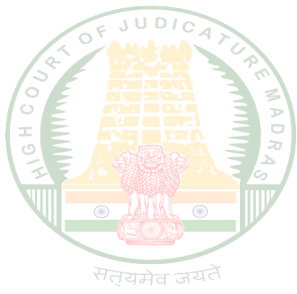
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subsequent developments that had taken place in the present case, after the Family Court passed the common order dated 10.01.2007, which are impugned in these appeals, can very well taken note of by this Court to conclude that the intention of the appellant is not to rejoin the matrimonial company of the respondent, but to harass and humiliate the respondent and his family members in all forms and manifestations. In any event, as we have noticed that the respondent had adequately proved the averments which he made in the Original Petition, he is entitled for a decree for dissolution of marriage.”

(ii) 2021 (1) CTC 129 [Vivek Thambuswamy Vs. Maria @ Sijo Paul],

wherein the Division Bench of this Court at paragraph No.34 has held as follows:

“ 34. Even though the appellant-husband did not prove the averments contained in the Original Petition that he was subjected to matrimonial cruelty by examining independent witness, the subsequent criminal proceedings initiated by the respondent-wife against the appellant-husband and his parents, definitely widens the matrimonial relationship between the parties. As observed above, the respondent, without any justifiable cause or reason, had implicated the parents of the appellant in the criminal proceedings alleging that they have demanded dowry. However, such an averment is conspicuously absent in the counter statement filed in

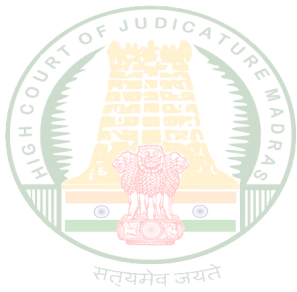


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the Original Petition filed before the Family Court. To make it clear, in the counter statement filed by the respondent-wife on 08.01.2014, there is no averment made as against the parents of the appellant-husband. If really the respondent-wife was subjected to any matrimonial cruelty or harassment at the instance of the parents of the appellant-husband, she could have spelt out the same at the time of filing the counter statement. Therefore, we conclude that the criminal proceedings initiated by the respondent-wife as against the parents of the appellant-husband, are clearly an after-thought. When such an action has been resorted to by the respondent to prosecute the parents of the appellant, it only enlarges the differences between the couple. In such circumstances, no prudent husband would ever be inclined to live with the wife, when his parents are prosecuted without any justifiable reason. This attitude of the respondent-wife in preferring criminal complaint against the appellant-husband and his parents, definitely amounts to cruelty and on that ground, the appellant-husband is entitled to a decree of divorce. The respondent-wife, by her own conduct, had enlarged the scope of the matrimonial litigation and thereby subjected the appellant-husband to cruel treatment. We also take note of the fact that no where, the respondent had expressed any inclination to live with the appellant, rather, she only repeatedly harped upon the usurp of her wealth by the appellant and his parents. In such view of the matter, we feel that interest of justice will only require grant of a decree of divorce as prayed for by the appellant-husband. In this context, we derive strength from a



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decision of the Supreme Court in the case of Raj Talreja Vs. Kavita Talreja, reported in 2017 (4) CTC 208, wherein, it was held as follows:-

“10. Cruelty can never be defined with exactitude. What is cruelty will depend upon the facts and circumstances of each case. In the present case, from the facts narrated above, it is apparent that the wife made reckless, defamatory and false accusations against her husband, his family members and colleagues, which would definitely have the effect of lowering his reputation in the eyes of his peers. Mere filing of complaints is not cruelty, if there are justifiable reasons to file the complaints. Merely because no action is taken on the complaint or after trial the accused is acquitted may not be a ground to treat such accusations of the wife as cruelty within the meaning of the [Hindu Marriage Act](#) (for short “the Act). However, if it is found that the allegations are patently false, then there can be no manner of doubt that the said conduct of a spouse levelling false accusations against the other spouse would be an act of cruelty...”

19. Further, the appellant and respondent are living separately from the year 2014. The appellant did not take any steps for reunion with the respondent and has not filed any petition for restitution of conjugal rights even after the respondent has filed petition for dissolution of marriage. The Hon'ble Apex Court, in para 101 of the judgment reported in **(2007) 4 SCC 511 [Samar**



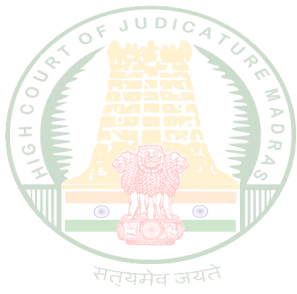
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Ghosh Vs. Jaya Ghosh has given illustrations of mental cruelty and has also

stated 'it is not exhaustive'. Para 101 of the said judgment is extracted hereunder:

“**101.**No uniform standard can ever be laid down for guidance, yet we deem it appropriate to enumerate some instances of human behaviour which may be relevant in dealing with the cases of 'mental cruelty'. The instances indicated in the succeeding paragraphs are only illustrative and not exhaustive.

- (i) On consideration of complete matrimonial life of the parties, acute mental pain, agony and suffering as would not make possible for the parties to live with each other could come within the broad parameters of mental cruelty.
- (ii) On comprehensive appraisal of the entire matrimonial life of the parties, it becomes abundantly clear that situation is such that the wronged party cannot reasonably be asked to put up with such conduct and continue to live with other party.
- (iii) Mere coldness or lack of affection cannot amount to cruelty, frequent rudeness of language, petulance of manner, indifference and neglect may reach such a degree that it makes the married life for the other spouse absolutely intolerable.
- (iv) Mental cruelty is a state of mind. The feeling of deep anguish, disappointment, frustration in one spouse caused by the conduct of other for a long time may lead to mental cruelty.



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(v) A sustained course of abusive and humiliating treatment calculated to torture, discomode or render miserable life of the spouse.

(vi) Sustained unjustifiable conduct and behaviour of one spouse actually affecting physical and mental health of the other spouse. The treatment complained of and the resultant danger or apprehension must be very grave, substantial and weighty.

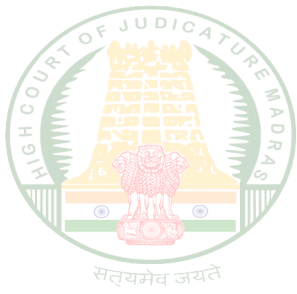
(vii) Sustained reprehensible conduct, studied neglect, indifference or total departure from the normal standard of conjugal kindness causing injury to mental health or deriving sadistic pleasure can also amount to mental cruelty.

(viii) The conduct must be much more than jealousy, selfishness, possessiveness, which causes unhappiness and dissatisfaction and emotional upset may not be a ground for grant of divorce on the ground of mental cruelty.

(ix) Mere trivial irritations, quarrels, normal wear and tear of the married life which happens in day to day life would not be adequate for grant of divorce on the ground of mental cruelty.

(x) The married life should be reviewed as a whole and a few isolated instances over a period of years will not amount to cruelty. The ill-conduct must be persistent for a fairly lengthy period, where the relationship has deteriorated to an extent that because of the acts and behaviour of a spouse, the wronged party finds it extremely difficult to live with the other party any longer, may amount to mental cruelty.

(xi) If a husband submits himself for an operation of sterilization without medical



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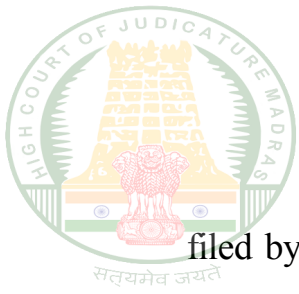
reasons and without the consent or knowledge of his wife and similarly if the wife undergoes vasectomy or abortion without medical reason or without the consent or knowledge of her husband, such an act of the spouse may lead to mental cruelty.

(xii) Unilateral decision of refusal to have intercourse for considerable period without there being any physical incapacity or valid reason may amount to mental cruelty.

(xiii) Unilateral decision of either husband or wife after marriage not to have child from the marriage may amount to cruelty.

(xiv) Where there has been a long period of continuous separation, it may fairly be concluded that the matrimonial bond is beyond repair. The marriage becomes a fiction though supported by a legal tie. By refusing to sever that tie, the law in such cases, does not serve the sanctity of marriage; on the contrary, it shows scant regard for the feelings and emotions of the parties. In such like situations, it may lead to mental cruelty.”

20.As per Clause (xiv), the Hon'ble Apex Court in the above judgment has held that when parties are living in separation for long period, it can be concluded that matrimonial bond is beyond repair. When the other party refuses to sever the marital tie, it amounts to mental cruelty. Applying the guidelines of the Hon'ble Apex Court, we have no hesitation to hold that respondent has proved the cruelty as alleged by him in F.C.O.P.No.166 of 2015



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filed by him and that he is entitled for the decree of divorce by dissolving the marriage.

21.The learned Judge has considered all the materials placed before him in proper perspective and by giving cogent and valid reason, allowed the F.C.O.P.No.166 of 2015, filed by the respondent, ordering dissolution of marriage. We do not find any reason to interfere with the said finding.

In the result, this Civil Miscellaneous Appeal is dismissed.
Consequently, connected Miscellaneous Petition is closed. No costs.

(V.M.V., J) (S.S., J)
25.08.2022
($\frac{1}{2}$)

Index : Yes / No
gsa

To

1.The Judge,
Family Court,

28/30



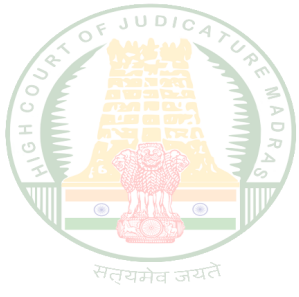
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2.The Section Officer,
VR Section,
High Court,
Madras.



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**V.M.VELUMANI,J.
and
S.SOUNTHAR,J.**

(gsa)

Pre-Delivery judgment in
C.M.A.No.1333 of 2020

25.08.2022
($\frac{1}{2}$)